

Fly GACA — Grievance & Disciplinary Procedure

SECTION 05-people

TYPE policy

STATUS **draft**

OWNER Founder / HR

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إجراءات التظلم والتأديب — فلاي قাকা

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DRAFT — PENDING LEGAL REVIEW. This procedure must be reviewed by a qualified Saudi HR professional and/or Saudi-licensed legal counsel before the first non-founder hire, and an **Arabic version prepared for Saudi national employees** (HRSD may require Arabic records in any dispute — HR Gap Audit §5). It is not legal advice. Saudi Labor Law (Royal Decree M/51 and its amendments, Arts. 66–73, 80–81) and HRSD regulations govern; where this procedure conflicts with the law, the law prevails.

1. Purpose

1.1 Give every employee a clear, safe channel to raise concerns (grievances) and get a timely, documented answer. 1.2 Define a fair, graduated disciplinary process — required documentation before any dismissal, since HRSD/labour courts can void a termination that lacks documented warnings (HR Gap Audit §3, item 5). 1.3 Keep records that protect both employee and Company in any HRSD amicable-settlement or labour-court proceeding.

2. Scope

2.1 Applies to all employees of BDA Company International (شركة بدع الدولية) under Saudi Labor Law, including those on probation. 2.2 Does not apply to Tamheer trainees (separate programme rules) or independent contractors (contract terms govern). 2.3 Harassment and discrimination complaints follow the **Anti-Harassment & Anti-Discrimination Policy** (05-people/anti-harassment-policy-2026-07-03.md), which takes precedence for those matters; its reporting channels feed into the investigation standards below.

3. Definitions

Term	Definition
Grievance	Any work-related concern an employee raises: workload, pay/WPS errors, leave disputes, conditions, treatment by a colleague or manager, policy application.
Disciplinary action	A formal, recorded response to misconduct or repeated underperformance, escalating per §6.

Term	Definition
Warning	A dated, written record describing the issue, the expected change, the review period, and consequences of recurrence.
Gross misconduct	Conduct that may justify termination without award under Labor Law Art. 80 (e.g., assault, material dishonesty, deliberate serious loss, repeated absence — 20 non-consecutive / 10 consecutive days after written warning, disclosure of trade secrets).
HRSD	Ministry of Human Resources and Social Development (وزارة الموارد البشرية والتنمية الاجتماعية).

4. Grievance Procedure

4.1 Channels

1. **Direct (default):** raise with your line manager in a 1-on-1 or in writing (Slack DM or email).
2. **HR channel:** email hr@flygaca.com or i@flygaca.com (routing per 02-legal/email-routing.md) with subject "Grievance".
3. **Founder open-door:** per Employee Handbook open-door policy, directly to the Founder.
4. **If the grievance concerns the Founder:** because Fly GACA is currently a solo-founder company, the employee may raise the matter with the Company's designated external contact [Owner to confirm — appoint an external HR advisor, board observer, or counsel as alternate recipient before first hire], and always retains the statutory right in §4.4.

4.2 Process and timelines

1. **Acknowledgment:** within **2 working days** of receipt.
2. **Review:** the recipient gathers facts, meets the employee, and hears any other party — normally within **7 working days**.
3. **Outcome:** written outcome and any corrective action within **14 calendar days** of receipt; if more time is genuinely needed, the employee is told why and given a new date.
4. **Appeal:** the employee may ask for one reconsideration in writing within **7 days** of the outcome; a written final answer follows within a further 7 days.

4.3 Protections

No employee will suffer retaliation for raising a grievance in good faith (see Anti-Harassment Policy §8 for the retaliation standard, which applies here too). Grievance records are confidential, shared strictly need-to-know.

4.4 External escalation (statutory right)

Nothing in this procedure limits the employee's right to file a complaint with **HRSD (amicable settlement via the Musaned/Wudi'a friendly-settlement channels or the HRSD office)** and thereafter the **Labour Court**, per Labor Law Part 14. The Company will state this right in every grievance outcome letter.

5. Disciplinary Principles (Labor Law alignment)

5.1 **Be heard first:** no penalty is imposed until the employee has been informed of the allegation in writing and given a chance to respond (Labor Law Art. 71). The response is recorded. 5.2 **Proportionality:** one penalty per violation; the penalty matches the severity (Art. 66 penalty ladder: warning, fine, suspension, denial of raise/promotion, dismissal). 5.3 **Time limits:** disciplinary action is initiated within **30 days** of discovering the violation and any penalty imposed within **30 days** of the investigation concluding (Art. 72 framing — [Owner to confirm exact article numbering with counsel]). 5.4 **Objection:** the employee may object to a penalty in writing within **15 days**; unresolved objections may go to the Labour Court (Art. 72). 5.5 **Work rules filing:** once headcount triggers apply, the Company will adopt an HRSD-approved internal work regulation (schedule of violations/penalties) **[Owner to confirm threshold and filing with counsel]**. Until then, this procedure plus the Employee Handbook are the governing internal rules.

6. Disciplinary Steps

Step	Action	Typical trigger	Record	Active period
1	Verbal warning (documented)	First minor issue (lateness, missed process, minor conduct)	Dated file note, employee told it is a formal step	6 months
2	First written warning	Repeat of Step 1 issue, or a moderate first offence	Written warning: facts, expected change, review date, consequences; employee signs receipt (refusal noted before a witness)	6 months
3	Final written warning	Repeat within active period, or serious first offence not amounting to gross misconduct	Final warning stating dismissal is next; improvement plan attached where performance-related	12 months
4	Termination	Repeat after final warning, or gross misconduct under Art. 80	Termination letter citing the legal basis and warning history; Offboarding Checklist opened	—

6.1 **Skipping steps:** gross misconduct (Art. 80) may proceed directly to investigation and termination without prior warnings — but only after the written-allegation-and-response step in §5.1 and legal advice, because Art. 80 dismissal can forfeit EOSB and is closely scrutinised. 6.2 **Suspension pending investigation:** for serious allegations, the Founder may suspend with pay for a short defined period consistent with Labor Law limits **[Owner to confirm duration/pay treatment with counsel]**. 6.3 **Performance vs. conduct:** sustained underperformance goes through documented feedback (1-on-1s, performance review) and an improvement plan before Step 3 — the PIP Template is a P2 gap-audit item **[Owner to confirm — draft PIP template before first performance case]**. 6.4 Warnings expire from the active record after the periods above, but stay in the HR file for evidential purposes.

7. Investigation Standard (both procedures)

1. Named investigator (Founder, or the external alternate in §4.1(4) where conflicted).
2. Written allegation to the employee; written or minuted response.
3. Evidence gathered: documents, system logs, witness statements — dated and stored in the confidential HR folder.
4. Findings and decision in writing, with reasons, delivered to the employee.
5. Everything in this section is bilingual-ready for Saudi national employees **[Owner to confirm Arabic templates]**.

8. Records

All grievance and disciplinary records are kept in the employee's confidential HR folder in Drive (06-operations-it/03-drive-folder-structure.docx), access restricted to the Founder, retained for the duration of employment plus the statutory limitation period **[Owner to confirm retention with counsel]**. Records may be produced to HRSD or the Labour Court if required.

9. Review

Reviewed annually (each January), on any Labor Law/HRSD change, and at 10+ employees (aligned with Leave & PTO Policy §17). Questions: **Adel Yahya A. Madkhali** | ia@flygaca.com | +966 51 096 6969.

Cross-references: Saudi Labor Law Arts. 66–73, 80–81 · 05-people/employee-handbook.docx (open-door, termination/notice) · 05-people/anti-harassment-policy-2026-07-03.md · 05-people/offboarding-checklist-2026-07-03.md · 05-people/performance-review-template.docx · 05-people/saudi-compliant-employment-contract-template.docx

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